UNITED STATES TAX COURT

Dana L. Example Mira T. Example Petitioners, v. COMMISSIONER OF INTERNAL REVENUE, Respondent.	))))))))))	Docket No. 4321-26

PRETRIAL MEMORANDUM FOR PETITIONER

NAME OF CASE: Dana L. Example and Mira T. Example v. Commissioner of Internal Revenue

DOCKET NO(S).: 4321-26

TRIAL CALENDAR: Portland, Oregon, January 11, 2027

ATTORNEYS:

Petitioner:
Ruth A. Sampleton
Tel. No.: (555) 010-2001
Email: rsampleton@example.invalid

Respondent:
Jordan P. Hale, Trial Attorney
Tel. No.: (555) 010-3300
Email: jhale@example.invalid

AMOUNTS IN DISPUTE:

Year(s)/ Period(s)	Deficiencies/Liabilities	Additions/Penalties
2023	$18,420.00	$3,684.00 (sec. 6662(a))

STATUS OF CASE:

☐ Probable Settlement ☒ Probable Trial ☐ Definite Trial

CURRENT ESTIMATE OF TRIAL TIME: 3 hour(s)

STATUS OF STIPULATION OF FACTS:

☐ Completed, will be filed electronically ☒ In Progress

MOTIONS YOU EXPECT TO MAKE

Petitioners expect to move for leave to file a supplemental stipulation of facts after the stipulation deadline in the Standing Pretrial Order, limited to the two bank statements that the respondent produced on the last day of discovery. The motion would not change any other date.

Petitioners do not expect to move to dismiss or for summary judgment.

ISSUES

1. Whether the Commissioner's determination that petitioners had unreported gross receipts of $61,200.00 in 2023 is correct.

2. Whether petitioners are entitled to deduct business expenses of $27,350.00 claimed on Schedule C for 2023.

3. Whether petitioners had reasonable cause and acted in good faith under section 6664(c), so that the accuracy-related penalty under section 6662(a) does not apply.

WITNESSES YOU EXPECT TO CALL

Name	Summary of expected testimony
Dana L. Example	Petitioner. Operation of Example Books in 2023, the business records kept, and the expenses claimed on Schedule C.
Mira T. Example	Petitioner. Household finances, the bank accounts used for the business, and the reliance on the return preparer.
Lee K. Oduya	Return preparer for 2023. Preparation of the return from the records provided, and the advice given on the expenses.

SUMMARY OF FACTS

Petitioners operated a bookkeeping business as a sole proprietorship from 2019 through 2024 under the name Example Books. Dana L. Example kept the business books and issued the invoices to customers.

Petitioners filed their 2023 return on April 15, 2024, with the assistance of Lee K. Oduya, a return preparer. The return reported the business income and the expenses shown on Schedule C.

The notice of deficiency, dated March 3, 2026, determined a deficiency of $18,420.00 and an accuracy-related penalty of $3,684.00. Petitioners filed a timely petition in response. The parties have exchanged informal discovery, and the respondent produced the bank statements described in the motion above.

Dated: October 6, 2026

_____

Ruth A. Sampleton
Tax Court Bar No. SA0000
Sampleton & Rivera PC
1200 Fictional Plaza, Suite 400
Portland, Oregon 97201
(555) 010-2001
rsampleton@example.invalid
Counsel for Petitioners